

Babu Lal S/O Kishan Lal vs Smt Anita W/O Shri Babu Lal D/O Shri Ram ... on 1 July, 2019

Bench: Mohammad Rafiq, Narendra Singh Dhaddha

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D.B. Civil Miscellaneous Appeal No. 4639/2018

Babu Lal S/o Kishan Lal, Aged About 39 Years, B/c Bairwa, R/o Village Dayalpura, Tehsil Dudu, District Jaipur. Presently Residing At E-232, Sanjay Nagar, Kachchi Basti, DCM, Tehsil & District Jaipur.

----Appellant

Versus

Smt. Anita Devi W/o Shri Babu Lal D/o Shri Ram Lal Bairwa, Aged About 31 Years, B/c Bairwa, R/o Village Kishorepura, Tehsil Phagi, District Jaipur.

----Respondent

For Appellant(s)	:	Shri Chitransh Sharma
For Respondent(s)	:	None present

HON'BLE MR. JUSTICE MOHAMMAD RAFIQ
HON'BLE MR. JUSTICE NARENDRA SINGH DHADDHA

Order

01/07/2019

BY THE COURT : (PER HON'BLE DHADDHA, J.)

1.0 Heard on application (2080/2018) filed u/s 5 of the Limitation Act.

1.1 For the reasons mentioned in the application (2080/2018), the same is allowed. Delay of 59 days in filing the appeal is condoned. The application (2080/2018) stands disposed off.

2.0 This appeal is preferred by the appellant husband against the order of the learned Family Court, No.2, Jaipur passed on 12.6.2018. By this order, the learned Family Court decided the Matrimonial Application No.151/2016 filed u/s 24 of the Hindu Marriage, Act, 1955 (for short "the Act") with the directions to the (2 of 4) [CMA-4639/2018] appellant to pay Rs.5,000/- per month for her maintenance till final decision of the petition u/s 9 of the Act. In case, the respondent wife is getting any maintenance by other order/s, that shall be adjusted from this amount.

2.1 Brief facts giving rise to this appeal are that the marriage between appellant and respondent was solemnized on 23.4.2003 according to the Hindu rites and ceremonies. Out of their marriage wedlock, a female child was born on 24.7.2004 who is residing with her mother. After marriage, appellant husband used to torture the respondent wife for bringing motorcycle and money for his business. Respondent's elder sister Kavita was also married with appellant's elder brother Om Prakash. She was also harassed by her in-laws. On this, an FIR was lodged on 6.11.2007 for offence u/s 498A and 406 IPC. Thereafter, appellant and his family members with abusive language, pressed to withdraw the criminal case. On this, respondent wife registered another case for offence u/s 12 of the Protection of Women from Domestic Violence Act, 2005.

2.2 Learned counsel for the appellant submitted that the impugned order dated 12.6.2018 is illegal, arbitrary and against the material available on record. The appellant is a daily wager person and is getting Rs.135/- per day working in MNREGA (Mahatama Gandhi National Rural Employment Guarantee Act). The appellant has no sufficient means of earning. There is no other source of income. Learned counsel submitted that the respondent wife had left appellant's house without any cause. He also submitted that the appellant had filed a petition seeking divorce and respondent had also filed a petition for restitution of conjugal rights. Thus, both the petitions were disposed off by (3 of 4) [CMA-4639/2018] compromise that petition u/s 13-B of the Act be filed on 01.09.2012 and appellant shall pay Rs.1,00,000/- for permanent maintenance. Appellant was ready to comply with the compromise but respondent resiled from the compromise and filed a petition u/s 9 of the Act. Counsel for the appellant also submitted that there is no evidence that the appellant is an electrician and doing electric work. So, the maintenance awarded by the learned Family Court be set aside.

2.3 Even the notices are served, nobody is present on behalf of the respondent wife to argue the matter. 2.4 We have given our thoughtful consideration to the arguments advanced by the appellant, perused the impugned order and the material available on record.

2.5 The appellant did not establish any evidence in the learned Family Court that the respondent wife had an adequate source of income to maintain herself and her minor daughter. Respondent wife produced the visiting card of Harkishan Electrical in which the name of appellant is shown as proprietor and the appellant had not denied about this fact in the learned Family Court. He had produced MNREGA job card for the year 2008-2009 to 2012-2013. He had not produced any document about presently working as a MNREGA labour. It is moral and legal duty of husband to maintain his wife and children. His liability would not be absolved that he had not sufficient means of income. Respondent wife also have to look after her minor children. So, the above mentioned maintenance awarded by the learned Family Court does not suffer from any illegality or infirmity. So, the appeal being devoid of merit, is liable to be dismissed.

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2.6 Hence, the appeal, being devoid of merit,

2.7 Since the civil miscellaneous appeal has

today, the stay application also stands dismissed. (NARENDRA SINGH DHADDHA),J
(MOHAMMAD RAFIQ),J RAJ KUMAR CHAUHAN /17/28 Powered by TCPDF (www.tcpdf.org)